

BRANDWOOP PTY LTD

DEVELOPER & TECHNICAL PARTNER AGREEMENT

DOCUMENT 1 – PART 1

1. PARTIES

This Developer & Technical Partner Agreement ("Agreement") is made on the 12th of June 2026.

BETWEEN

BrandWoop Pty Ltd

ABN: 63 692 878 649

Brisbane, Queensland, Australia

("BrandWoop", "Company")

AND

Contractor / Technical Partner

Name: B.M.S.Pabasara Fernando

Company Name (if applicable): _____

Country: Sri Lanka

Address: NO 525, 23 Mile Post, Jayanthipura, Polonnaruwa

Email: pabasaraf79@gmail.com

Phone: +94781440205

("Contractor")

The Company and Contractor are collectively referred to as the "Parties".

2. PURPOSE

The Contractor may provide services including:

- Software Development
- Mobile App Development
- Web Development
- UI/UX Design
- Quality Assurance
- DevOps Services
- Cloud Infrastructure
- Artificial Intelligence Development
- Automation Systems
- Technical Consulting
- Project Support
- Technical Resource Services

The Parties acknowledge that the Contractor may obtain access to confidential information, clients, prospects, opportunities, intellectual property, software assets and business relationships belonging to BrandWoop.

The purpose of this Agreement is to protect the legitimate business interests of BrandWoop.

3. RELATIONSHIP OF THE PARTIES

The Contractor is engaged as an independent contractor.

Nothing in this Agreement shall create:

- employment;
- partnership;
- agency;
- joint venture;
- fiduciary relationship;

between the Parties.

The Contractor shall not represent themselves as an employee, director, officer or authorised representative of BrandWoop unless expressly authorised in writing.

4. DEFINITIONS

Business Opportunity

Means any project, lead, enquiry, referral, tender, proposal opportunity, request for quotation, request for proposal, consultation, discovery session or business discussion introduced directly or indirectly by BrandWoop.

Client

Means any client, customer, prospect, referral source, lead or business contact introduced directly or indirectly through BrandWoop.

Confidential Information

Means all non-public information relating to:

- clients;
- prospects;
- pricing;
- proposals;
- quotations;
- source code;
- repositories;
- software architecture;
- APIs;
- databases;
- financial information;
- business plans;
- internal communications;
- operational procedures;
- marketing information;
- sales information;
- AI systems;
- automation workflows;
- passwords;
- credentials;
- infrastructure;
- project documentation;

and any information a reasonable person would consider confidential.

Intellectual Property

Includes all:

- source code;
 - software;
 - applications;
 - websites;
 - databases;
 - APIs;
 - designs;
 - wireframes;
 - documentation;
 - workflows;
 - prompts;
 - automations;
 - inventions;
 - improvements;
 - derivatives;
 - know-how;
 - proprietary methodologies.
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5. SERVICES

The Contractor shall perform services assigned by BrandWoop with due care, skill and diligence.

The Contractor shall:

- (a) act professionally;
 - (b) follow reasonable instructions;
 - (c) protect Company interests;
 - (d) maintain professional standards;
 - (e) avoid conduct likely to damage BrandWoop's reputation.
-

6. CLIENT OWNERSHIP

The Contractor acknowledges that all:

- Clients;

- Prospects;
- Leads;
- Referrals;
- Business Opportunities;
- Tender Opportunities;
- Proposal Opportunities;

introduced by BrandWoop remain the exclusive property and business relationships of BrandWoop.

No ownership rights are transferred to the Contractor.

7. NON-CIRCUMVENTION

The Contractor shall not directly or indirectly:

- (a) bypass BrandWoop;
- (b) circumvent BrandWoop;
- (c) avoid BrandWoop;
- (d) exclude BrandWoop;
- (e) interfere with BrandWoop business relationships.

The Contractor shall not establish direct commercial arrangements with any BrandWoop Client where the opportunity originated through BrandWoop.

The Contractor shall not use information obtained through BrandWoop to secure independent engagements.

8. NON-SOLICITATION OF CLIENTS

During the Term and for twenty-four (24) months following termination, the Contractor shall not:

- (a) solicit;
- (b) approach;
- (c) market services to;

(d) negotiate with;

(e) contract with;

(f) accept work from;

any BrandWoop Client introduced through BrandWoop without prior written approval.

9. NON-SOLICITATION OF STAFF

During the Term and for twenty-four (24) months following termination, the Contractor shall not directly or indirectly:

(a) recruit;

(b) hire;

(c) engage;

(d) solicit;

(e) induce to leave;

any employee, contractor, consultant, freelancer or subcontractor of BrandWoop.

10. REFERRAL PARTNER PROTECTION

The Contractor shall not directly engage, solicit or contract with any:

- referral partner;
- strategic partner;
- supplier;
- subcontractor;
- business associate;

introduced by BrandWoop for the purpose of bypassing BrandWoop.

11. CLIENT MEETING CONDUCT

Where the Contractor attends meetings involving BrandWoop Clients, the Contractor shall not:

- (a) promote their own company;
- (b) promote another company;
- (c) distribute personal marketing materials;
- (d) provide personal quotations;
- (e) negotiate directly with Clients;
- (f) offer competing services;
- (g) discuss unrelated projects for self-promotion;
- (h) encourage direct engagement outside BrandWoop.

The Contractor acknowledges that attendance at such meetings is solely for the benefit of BrandWoop and its Clients.

12. NO DIRECT PROPOSALS

The Contractor shall not provide:

- quotations;
- estimates;
- budgets;
- contracts;
- commercial proposals;
- statements of work;

directly to any BrandWoop Client without prior written approval.

13. NO SIDE PAYMENTS

The Contractor shall not directly or indirectly receive:

- project fees;
- deposits;
- commissions;
- referral fees;

- milestone payments;

from any BrandWoop Client without written approval from BrandWoop.

14. CONFLICT OF INTEREST

The Contractor shall immediately disclose any actual, potential or perceived conflict of interest.

The Contractor shall not participate in any activity that may reasonably conflict with BrandWoop's interests.

15. NON-COMPETITION FOR ACTIVE OPPORTUNITIES

The Contractor shall not compete against BrandWoop in relation to any:

- project;
- proposal;
- tender;
- quotation;
- client opportunity;

introduced by BrandWoop.

16. TERM AND TERMINATION

This Agreement commences on the Effective Date and continues until terminated by either Party.

BrandWoop may terminate immediately where the Contractor:

- (a) breaches confidentiality;
- (b) circumvents BrandWoop;
- (c) breaches intellectual property obligations;

(d) commits serious misconduct;

(e) damages BrandWoop's reputation.

Termination shall not affect any accrued rights or continuing obligations.

END OF DOCUMENT 1 – PART 1



BRANDWOOP PTY LTD

DEVELOPER & TECHNICAL PARTNER AGREEMENT

DOCUMENT 1 – PART 2

17. CONFIDENTIALITY

The Contractor shall keep all Confidential Information strictly confidential.

The Contractor shall:

- (a) use Confidential Information solely for authorised BrandWoop purposes;
- (b) protect Confidential Information using industry-standard security measures;
- (c) prevent unauthorised access, disclosure, copying, publication, distribution or misuse;
- (d) immediately notify BrandWoop of any actual or suspected breach.

The Contractor shall not disclose Confidential Information without prior written approval.

The obligations contained in this clause survive termination indefinitely.

18. CONFIDENTIAL INFORMATION OF CLIENTS

The Contractor acknowledges that BrandWoop may provide access to confidential information belonging to clients.

Such information shall be treated as Confidential Information under this Agreement.

The Contractor shall not use client information for any purpose other than the authorised project.

19. AI SYSTEMS AND THIRD-PARTY PLATFORMS

Without prior written approval from BrandWoop, the Contractor shall not upload, submit, disclose or transfer Confidential Information to:

- ChatGPT;
- Claude;
- Gemini;
- Copilot;
- DeepSeek;
- Grok;
- public AI systems;
- machine learning platforms;
- third-party automation systems.

This restriction applies whether information is:

- original;
- modified;
- summarised;
- anonymised;
- transformed.

The Contractor shall obtain written approval before using AI systems on any BrandWoop project.



20. CYBERSECURITY OBLIGATIONS

The Contractor shall maintain appropriate cybersecurity controls.

Minimum requirements include:

- (a) multi-factor authentication;
- (b) strong password management;
- (c) device encryption where available;
- (d) updated operating systems;
- (e) updated security software;
- (f) secure storage of credentials.

The Contractor shall not:

- share passwords;
 - reuse client credentials for unrelated projects;
 - store credentials insecurely.
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21. SECURITY INCIDENT NOTIFICATION

The Contractor shall notify BrandWoop within twenty-four (24) hours of becoming aware of:

- data breaches;
- credential compromise;
- ransomware attacks;
- unauthorised access;
- accidental disclosure;
- security incidents.

The Contractor shall cooperate fully with investigations.

22. PERSONAL DEVICES

Where BrandWoop information is accessed on personal devices, the Contractor shall:

- (a) maintain reasonable security;
 - (b) prevent unauthorised access;
 - (c) remove Company information upon request;
 - (d) permit verification of deletion where reasonably requested.
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23. DATA PROTECTION

The Contractor shall comply with:

- applicable Australian privacy laws;
- applicable Sri Lankan laws;
- client contractual requirements;
- applicable data protection regulations.

The Contractor shall only access data necessary for authorised services.

24. INTELLECTUAL PROPERTY OWNERSHIP

All Intellectual Property created, developed, modified or contributed by the Contractor during any BrandWoop engagement shall automatically vest in BrandWoop upon creation.

This includes:

- source code;
 - software;
 - mobile applications;
 - websites;
 - APIs;
 - databases;
 - AI systems;
 - prompts;
 - automations;
 - workflows;
 - designs;
 - documentation;
 - reports;
 - technical specifications.
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25. ASSIGNMENT OF INTELLECTUAL PROPERTY

The Contractor irrevocably assigns to BrandWoop all present and future rights, title and interest in Intellectual Property created in connection with BrandWoop projects.

The Contractor shall execute any additional documents reasonably required to perfect ownership.

26. MORAL RIGHTS CONSENT

To the extent permitted by law, the Contractor consents to BrandWoop:

- (a) modifying deliverables;
- (b) adapting deliverables;
- (c) reproducing deliverables;
- (d) commercialising deliverables;
- (e) assigning deliverables.

Without further consent.

27. SOURCE CODE OWNERSHIP

All source code developed in connection with BrandWoop projects shall remain the exclusive property of BrandWoop.

The Contractor shall not:

- sell;
- reuse;
- license;
- distribute;
- commercialise;

such source code without written approval.

28. GITHUB, GITLAB AND REPOSITORY CONTROL

All project repositories shall be owned or controlled by BrandWoop.

The Contractor shall not:

- (a) restrict BrandWoop access;
- (b) remove BrandWoop access;
- (c) delete repositories;

(d) hold repositories hostage;

(e) withhold source code.

Upon request, the Contractor shall immediately transfer repository control.

29. OPEN SOURCE SOFTWARE

The Contractor shall not incorporate open-source software subject to restrictive licensing obligations without written approval.

The Contractor shall maintain records of open-source components used.

30. PORTFOLIO RESTRICTIONS

The Contractor shall not publish or display:

- client names;
- logos;
- screenshots;
- source code;
- project information;
- case studies;
- testimonials;

without prior written approval from BrandWoop.

31. SOCIAL MEDIA RESTRICTIONS

The Contractor shall not publish BrandWoop project information on:

- LinkedIn;
- Facebook;
- Instagram;
- TikTok;
- YouTube;
- websites;
- blogs;

- online portfolios;

without written approval.

32. THIRD-PARTY DISCLOSURE

The Contractor shall not disclose BrandWoop information to:

- development companies;
- freelancers;
- consultants;
- subcontractors;
- service providers;

without prior written approval.

33. SUBCONTRACTING

The Contractor shall not subcontract, outsource or delegate any BrandWoop work without written approval.

Any approved subcontractor must execute agreements no less protective than this Agreement.

34. RETURN OF PROPERTY

Upon request or termination, the Contractor shall promptly return or destroy:

- source code;
- repositories;
- credentials;
- documentation;
- project assets;
- client information;
- Company property.

BrandWoop may require written certification of compliance.

35. AUDIT RIGHTS

Where reasonably necessary to verify compliance, BrandWoop may request evidence that:

- (a) Confidential Information has been deleted;
- (b) repositories have been transferred;
- (c) credentials have been surrendered;
- (d) obligations have been fulfilled.

The Contractor shall cooperate reasonably.

36. INDEMNITY

The Contractor indemnifies BrandWoop against losses arising from:

- (a) breach of confidentiality;
 - (b) intellectual property infringement;
 - (c) unauthorised disclosure;
 - (d) unauthorised client engagement;
 - (e) wilful misconduct;
 - (f) fraud;
 - (g) gross negligence.
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37. INJUNCTIVE RELIEF

The Contractor acknowledges that a breach of this Agreement may cause irreparable harm.

BrandWoop may seek:

- injunctions;
- interim orders;
- equitable relief;
- specific performance;

without limiting other rights.

38. DAMAGES

BrandWoop may recover damages arising from:

- loss of clients;
- loss of opportunities;
- loss of profits;
- intellectual property misuse;
- confidentiality breaches;

to the extent permitted by law.

39. LIQUIDATED DAMAGES

If the Contractor breaches clauses relating to:

- client ownership;
- non-circumvention;
- non-solicitation;
- direct client engagement;

BrandWoop may seek liquidated damages equal to:

AUD \$25,000

OR

three (3) times the value of the affected project,

whichever is greater,

subject to applicable law and court review.

40. SURVIVAL

The following provisions survive termination:

- confidentiality;
 - intellectual property;
 - non-circumvention;
 - non-solicitation;
 - indemnities;
 - remedies.
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41. GOVERNING LAW

This Agreement shall be governed by the laws of Queensland, Australia.

42. CROSS-BORDER ENFORCEMENT

BrandWoop may seek enforcement, injunctive relief or protective orders in:

- Australia;
 - Sri Lanka;
 - or any jurisdiction where the Contractor resides, operates or holds assets.
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43. SEVERABILITY

If any provision is held invalid or unenforceable, the remaining provisions continue in full force and effect.

44. ENTIRE AGREEMENT

This Agreement constitutes the entire agreement between the Parties relating to the subject matter.

45. EXECUTION

SIGNED for and on behalf of BrandWoop Pty Ltd

Name: _____

Position: _____

Signature: _____

Date: _____

SIGNED by the Contractor

Name: B.M.S.Pabasara Fernando

Company (if applicable): _____

Signature:



Date: 16 June 2026

END OF DOCUMENT 1

